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Summary of stakeholders' submissions on Antigua and Barbuda*

Report of the Office of the United Nations High Commissioner for Human Rights

I. Background

1. The present report was prepared pursuant to Human Rights Council resolutions 5/1 and 16/21, taking into consideration the periodicity of the universal periodic review and the outcome of the previous review.[1] It is a summary of 8 stakeholders' submissions[2] for the universal periodic review, presented in a summarized manner owing to word-limit constraints.

II. Information provided by stakeholders

A. Scope of international obligations[3] and cooperation with human rights mechanisms

2. Center for Global Nonkilling (CGNK) recommended that Antigua and Barbuda ratify the Convention on Enforced Disappearances (CED).[4] JS4 recommended the ratification of the Second Optional Protocol to the International Covenant on Civil and Political Rights (ICCPR-OP2), aiming at the abolition of the death penalty.[5]

B. National human rights framework

Institutional infrastructure and policy measures

3. JS1 noted that Antigua and Barbuda did not have a National Human Rights Institution (NHRI) compliant with the Paris Principles and recommended that the State take concrete steps to establish an independent NHRI in line with the Paris Principles.[6]

* The present document is being issued without formal editing.

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C. Promotion and protection of human rights

1. Implementation of international human rights obligations, taking into account applicable international humanitarian law

Right to life, liberty and security of person, and freedom from torture

4. JS4 noted that the death penalty remained on the statute books for murder and treason, although a *de facto* moratorium had been in place since 1991 and no person was currently under sentence of death. JS4 and CGNK welcomed Antigua and Barbuda's vote in favour of the United Nations General Assembly resolution calling for a global moratorium on executions in December 2024, for the first time. JS4 also noted the Prime Minister's public statement of March 2025 that he was not in favour of the death penalty. JS4 and CGNK recommended formal abolition of the death penalty and, in the interim, the establishment of a *de jure* moratorium, awareness-raising campaigns with civil society participation, and amendment of the Defence Act 2006 to remove capital punishment provisions inconsistent with the Constitution.[7]

5. JS4 reported serious concerns about conditions of detention at His Majesty's Prison, which had a design capacity of 150 but held approximately 300 prisoners as of 2024, with overcrowding, inadequate hygiene, and limited access to medical care. It further noted that persons charged with capital crimes had experienced significant delays in obtaining legal representation. JS4 recommended prioritizing reforms to reduce pre-trial detention and improving prison conditions.[8]

Administration of justice, including impunity, and the rule of law

6. JS3 reported the establishment of the Sexual Offences Court in 2019, built on the earlier creation of a one-stop shop in 2017, known as the Support and Referral Centre (SARC), which had been designed to provide survivors of sexual violence with more coordinated and accessible support. The support consisted of emergency accommodation, police intervention, medical care, counselling, child-friendly space, and facilities for vulnerable witnesses to give virtual testimony. The Court was described as an important institutional step, supported at different stages by external partners and key state actors, but JS3 noted that its effectiveness had been significantly undermined by weak sustainability planning and poor inter-agency coordination. Furthermore, since the original SARC operated from rented premises, the end of that arrangement had forced relocation of the Court to a less accessible site, which reportedly contributed to a drop in clients and the loss of several integrated services previously available on-site. The absence of codified inter-agency responsibilities, weak data collection, late notification of stakeholders, insufficient public awareness, and the lack of dedicated case management staff were identified as major barriers to the Court's functioning. While police had received significant exposure to training, concerns remained about sensitivity, record-keeping, and survivor treatment, underscoring the need for sustained investment, stronger coordination, and dedicated personnel to make the Court fully operational and survivor centred.[9]

Prohibition of all forms of slavery, including trafficking in persons

7. The European Centre for Law and Justice (ECLJ) reported that, despite increased law enforcement training, a 2025 National Action Plan, and the investigation of multiple cases, no individual had ever been convicted of human trafficking in Antigua and Barbuda and no victim had been formally identified. ECLJ attributed this to weak investigative capacity, court backlogs, insufficient victim protection services, and declining overall funding to combat trafficking. ECLJ called on the Government to allocate adequate resources for thorough investigation and prosecution of trafficking cases.[10]

Right to work and to just and favourable conditions of work

8. JS3 noted that informal sector workers — predominantly women — lacked employment protections. It further noted that maternity leave had been increased to 14 weeks in 2022, but that pregnant workers were not explicitly protected against dismissal and that no

paternity leave existed. JS3 recommended that paid parental leave of at least 14 weeks be made available to both parents and that dismissal of pregnant workers be prohibited.[11]

9. JS2 raised concerns regarding the situation of healthcare workers coming from a third country deployed to Antigua and Barbuda under a bilateral agreement in force since 2000, governed by agreements that were not publicly accessible. The agreements were reportedly subject to confidentiality clauses and proscribed that workers remit a significant portion of their remuneration to their country of origin authorities and comply with restrictive rules governing their conduct, mobility, and private life.[12] JS2 recommended that Antigua and Barbuda establish direct individual employment relationships under domestic law with full wages, access to social security, and equal treatment compared to local workers.[13]

Right to health

10. JS1 reported that institutional stigma within Antigua and Barbuda's public healthcare system continued to deter HIV/AIDS patients from seeking essential care. It further reported that no comprehensive sexuality education in line with international standards had been implemented, which may have contributed to sustained transmission rates. It further noted the absence of legal protection for access to gender-affirming care and the lack of any prohibition on so-called conversion therapies and recommended their explicit prohibition by law.[14]

Right to education

11. Christian Council International (CCI) recommended to strengthen the Health and Family Life Education curriculum in relation to financial literacy and skills needed within the work environment, especially for young adolescents so as to address an environment of poverty and lack of stability after finishing or dropping out of school.[15]

Development, the environment, and business and human rights

12. Judgment UN Skills Development Organization (JUNSD) proposed a set of measures aimed at addressing climate and economic challenges through resilient infrastructure and governance reforms, including digitalization initiatives, food sovereignty and blue-economy approaches, and debt-for-nature swaps. JUNSD also proposed resource-sustainability measures, including renewable-energy and water solutions, and advocated strengthening the right to quality education through investment in regional centres of excellence, including in marine science and disaster management, with a view to supporting sustainable development and diversification.[16]

2. Rights of specific persons or groups

Women

13. JS3 reported that gender-based violence (GBV) remained pervasive in Antigua and Barbuda, with available studies indicating high prevalence rates of domestic violence against women. It also noted that underreporting was widespread due to stigma and fear of reprisal, and that GBV could be exacerbated in disaster contexts, including the aftermath of Hurricane Irma and the COVID-19 pandemic. JS3 recommended to improve enforcement of GBV laws, particularly those relating to intimate partner violence and marital rape, to increase public awareness campaigns and training around GBV laws for police officers, judges, and employers while ensuring that GBV considerations be integrated into disaster response strategies.[17]

14. JS3 noted that societal stigma and biases among some law enforcement officers created reluctance to intervene in intimate partner violence cases, and recommended mandatory training for police, judges, and employers on GBV laws. It further noted that marital rape was not fully criminalized under Section 3(1) of the Sexual Offences Act and recommended its full criminalization.[18]

15. JS3 reported that women remained underrepresented in leadership and management positions and concentrated in service and tourism sectors, increasing their vulnerability to economic shocks. It recommended to focus efforts on increasing the number of women

employed in leadership or management positions and consider the implementation of quotas or mandatory reporting regarding all personnel for companies with greater than 50 employees.[19]

Children

16. JS3 recommended strengthening laws around discrimination and violence against children.[20]

17. CCI noted concerns about rising substance use among youth, linked to the breakdown of family structures, and recommended strengthening educational initiatives addressing this issue for both parents and children.[21]

Persons with disabilities

18. JS3 noted that data on persons with disabilities was limited and not disaggregated by gender, with the most recent available data dating from 2000, and that persons with disabilities continued to face accessibility barriers in daily life. It recommended that the Government improve data collection and strengthen protections for this group.[22]

Lesbian, gay, bisexual, transgender and intersex persons

19. JS1 and JS3 welcomed the decriminalization of consensual same-sex sexual activity following the High Court judgment of July 2022, while noting that the relevant statutory provisions had not been formally repealed and that significant gaps in legal protection persisted. JS1 further reported that there remained no legal mechanism for gender recognition or recognition of non-binary identities in Antigua and Barbuda, and that intersex minors were not protected from non-medically necessary interventions and recommended that legislation be enacted to address both gaps.[23]

20. JS1 reported that Antigua and Barbuda lacked comprehensive anti-discrimination legislation protecting individuals on the basis of sexual orientation, gender identity, gender expression, and sex characteristics (SOGIESC) in employment, housing, healthcare, and access to public services, and that the Government had stated it would not take active steps to codify LGBTIQ+ protections into law. JS1 recommended that comprehensive anti-discrimination legislation be enacted in consultation with LGBTIQ+ civil society organizations.[24]

21. JS1 reported that social stigma remained prevalent, that incidents of physical assault and property damage against LGBTIQ+ individuals had been documented, and that victims had in some cases experienced discriminatory treatment from law enforcement, including failure to notify complainants of court dates, causing cases to be dismissed. JS1 recommended enactment of legislation explicitly prohibiting incitement to hatred or violence based on SOGIESC, prompt investigation of hate-motivated incidents, and mandatory police training consistent with international human rights standards.[25]

22. S1 noted that same-sex couples were not afforded legal recognition and that the definition of "couple" in the Children (Care and Adoption) Act 2015 — limited to unions between a man and a woman — prevented same-sex couples from jointly adopting children. JS1 recommended that legal recognition and associated rights be extended to same-sex couples on a non-discriminatory basis.[26]

Notes

1 A/HRC/49/15, A/HRC/49/15/Add.1, and A/HRC/49/2.

2 The stakeholders listed below have contributed information for this summary; the full texts of all original submissions are available at: www.ohchr.org (one asterisk denotes a national human rights institution with A status).

Civil society

Individual submissions:

CCI	Christian Council International (Netherlands);
CGNK	Center for Global Nonkilling (Switzerland);

ECLJ	European Centre for Law and Justice (France);
JUNSD	Judgment UN Skills Development Organization (Egypt).

Joint submissions:

JS1	**Joint submission 1 submitted by:** The Advocates for Human Rights, Minneapolis (United States of America); Jason Jones People's Foundation (JJPF); Eastern Caribbean Alliance for Diversity and Equality (ECADE); ILGA–North America and the Caribbean (ILGA-NAC);
JS2	**Joint submission 2 submitted by:** Free Society Project / Cuba Archive; Asociación Sindical Independiente de Cuba (ASIC); Cubalex; Grupo de Monitoreo Independiente de El Salvador (GMIES); Instituto Cubano por la Libertad de Expresión y Prensa (ICLEP); Observatorio Cubano de Derechos Humanos (OCDH); Raíces de Esperanza en España (REFE);
JS3	**Joint submission 3 submitted by:** International Center for Advocates Against Discrimination (ICAAD); Women Against Rape (WAR);
JS4	**Joint submission 4 submitted by:** The Advocates for Human Rights, Minneapolis (United States of America); World Coalition Against the Death Penalty.

[3] The following abbreviations are used in UPR documents:

ICESCR	International Covenant on Economic, Social and Cultural Rights
OP-ICESCR	Optional Protocol to ICESCR
ICCPR	International Covenant on Civil and Political Rights
ICCPR-OP 2	Second Optional Protocol to ICCPR, aiming at the abolition of the death penalty
CED	Convention on Enforced Disappearances
CRPD	Convention on the Rights of Persons with Disabilities

[4] CGNK, para.5.
[5] JS4, para. 2.
[6] JS1, paras. 15–16.
[7] JS4, paras. 3, 9–11 and recommendations; CGNK, para. 2.
[8] JS4, paras. 12–13 and recommendations.
[9] JS3, paras. 19–20 and 23.
[10] ECLJ, paras. 17–20 and 22.
[11] JS3, paras. 44 and 46.
[12] JS2, paras. 10–14, and 19–29.
[13] JS2, paras. 55–58.
[14] JS1, paras. 19–22.
[15] CCI, paras. 12 and 15–16.
[16] JUNSD submission.
[17] JS3, paras. 7–12, recommendations 71 d.
[18] JS3, paras. 29 and 33; JS3, recommendations 4–5.
[19] JS3, paras. 43 and 68; JS3, recommendation 8.
[20] JS3, recommendation 5(e).
[21] CCI, paras. 19 and 23 and recommendation 24(c).
[22] JS3, paras. 9.4 (j)-(k).
[23] JS1, para. 6; JS3, para. 9.3 (e); JS1, paras. 3, 8.
[24] JS1, paras. 8 and 9.
[25] JS1, paras. 10 and 26–27; JS1, paras. 30.
[26] JS1, paras. 13–14 and 30.